

(2) In the case of a person convicted of attempted incest with a girl who is stated in the indictment and proved to have been at the time under the age of thirteen the foregoing subsection shall apply as it applies in the case of a person convicted of an attempt to have unlawful sexual intercourse with a girl under that age.

(3) Accordingly in the Second Schedule to that Act, for the words "two years" in the third column in items 2 (b), 14 (b) and 17 (i), there shall be substituted—

(a) in item 2 (b) the words "seven years";

(b) in item 14 (b) the words "if with a girl under thirteen who is stated to have been so in the indictment, seven years; otherwise two years";

(c) in item 17 (i) the words "if on a girl under thirteen who is stated to have been so in the indictment, five years; otherwise two years".

(4) This section shall not apply to offences committed on or before the date this Act is passed.

Short title,
extent and
commence-
ment.

3.—(1) This Act may be cited as the *Indecency with Children Act, 1960*.

(2) This Act shall not extend to Scotland or Northern Ireland.

(3) This Act shall come into force at the expiration of one month beginning with the date it is passed.

CHAPTER 34

Radioactive Substances Act, 1960

ARRANGEMENT OF SECTIONS

Section

1. General provisions for registration of users of radioactive material.
2. Exemptions from registration under s. 1.
3. Registration of mobile radioactive apparatus.
4. Exemptions from registration under s. 3.
5. Cancellation and variation of registration.
6. Disposal of radioactive waste.
7. Accumulation of radioactive waste.
8. Supplementary provisions as to authorisation of disposal and accumulation of radioactive waste.
9. Provisions as to functions of public and local authorities.
10. Additional facilities and powers for disposal and accumulation of radioactive waste.

Section

11. Procedure in connection with registrations and authorisations.
12. Rights of entry and inspection.
13. Offences.
14. Application of Act to Crown.
15. Regulations and orders.
16. Financial provisions.
17. Repeals and transitional provisions.
18. Meaning of "radioactive material", "radioactive waste" and "mobile radioactive apparatus".
19. General interpretation provisions.
20. Application to Scotland.
21. Northern Ireland.
22. Short title.

SCHEDULES:

First Schedule—Enactments, other than local enactments, to which s. 9 (1) applies.

Second Schedule—Exercise of rights of entry and inspection.

Third Schedule—Specified elements.

An Act to regulate the keeping and use of radioactive material, and to make provision as to the disposal and accumulation of radioactive waste; and for purposes connected with the matters aforesaid.

[2nd June, 1960]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) As from the appointed day no person shall, on any premises which are used for the purposes of an undertaking carried on by him, keep or use, or cause or permit to be kept or used, radioactive material of any description, knowing or having reasonable grounds for believing it to be radioactive material, unless either—

- (a) he is registered under this section in respect of those premises and in respect of the keeping and use thereon of radioactive material of that description, or
- (b) he is exempted from registration under this section in respect of those premises and in respect of the keeping and use thereon of radioactive material of that description, or
- (c) the radioactive material in question consists of mobile radioactive apparatus in respect of which a person is registered under section three of this Act or is exempted from registration under that section.

(2) Any application for registration under this section shall be made to the Minister, specifying—

- (a) the premises to which the application relates ;
- (b) the undertaking for the purposes of which those premises are used ;
- (c) the description or descriptions of radioactive material proposed to be kept or used on the premises, and the maximum quantity of radioactive material of each such description likely to be kept or used thereon at any one time ; and
- (d) the manner (if any) in which radioactive material is proposed to be used on the premises,

and containing such other information as may be prescribed.

(3) Subject to the following provisions of this section, where an application is made to the Minister for registration under this section in respect of any premises, the Minister may either—

- (a) register the applicant in respect of those premises and in respect of the keeping and use thereon of radioactive material of the description to which the application relates, or
- (b) if the application relates to two or more descriptions of radioactive material, register the applicant in respect of those premises and in respect of the keeping and use thereon of such one or more of those descriptions of radioactive material as may be specified in the registration, or
- (c) refuse the application.

(4) Any registration under this section in respect of any premises may (subject to the next following subsection) be effected subject to such limitations or conditions as the Minister thinks fit, and in particular (but without prejudice to the generality of this subsection) may be effected subject to conditions of any of the following descriptions, that is to say,—

- (a) conditions imposing requirements (including, if the Minister thinks fit, requirements involving structural or other alterations) in respect of any part of the premises, or in respect of any apparatus, equipment or appliance used or to be used thereon for the purposes of any use of radioactive material from which radioactive waste is likely to arise ;
- (b) conditions requiring the person to whom the registration relates, at such times and in such manner as may be specified in the registration, to furnish the Minister with information as to the removal of radioactive material from those premises to any other premises ;

- (c) conditions prohibiting radioactive material from being sold or otherwise supplied from those premises unless it (or the container in which it is supplied) bears a label or other mark indicating that it is radioactive material or (if the conditions so require) indicating the description of radioactive material to which it belongs, and (in either case) complying with any requirements specified in the conditions in relation thereto.

(5) In the exercise of any power conferred on him by subsection (3) or subsection (4) of this section, the Minister, except in determining whether to impose any conditions falling within paragraph (b) or paragraph (c) of the said subsection (4), shall have regard exclusively to the amount and character of the radioactive waste likely to arise from the keeping or use of radioactive material on the premises in question.

(6) On registering a person under this section in respect of any premises, the Minister shall furnish him with a certificate containing all material particulars of the registration, and (unless, for reasons of national security, it is in the Minister's opinion necessary that knowledge of the registration should be restricted) shall send a copy of the certificate to each local authority in whose area the premises are situated.

2.—(1) The Authority are exempted from registration under the preceding section in respect of all premises used for the purpose of their undertaking and in respect of the keeping and use thereon of radioactive material of every description. Exemptions from registration under s. 1.

(2) At any time while a nuclear site licence is in force in respect of a site, and at any time after the revocation or surrender of such a licence but before the period of responsibility of the licensee has come to an end, the licensee (subject to the next following subsection) is exempted from registration under the preceding section in respect of any premises situated on that site and in respect of the keeping and use thereon of radioactive material of every description.

(3) Where, in the case of any such premises as are mentioned in the last preceding subsection, it appears to the Minister that, if the licensee had been required to apply for registration under the preceding section in respect of those premises, the Minister would have imposed conditions such as are mentioned in paragraph (b) or paragraph (c) of subsection (4) of that section, the Minister may direct that the exemption conferred by the last preceding subsection shall have effect subject to such conditions (being conditions which in the opinion of the Minister correspond to those which he would so have imposed) as may be specified in the direction.

(4) On giving a direction under the last preceding subsection in respect of any premises, the Minister shall furnish the licensee with a copy of the direction.

(5) In respect of all premises, all persons are exempted from registration under the preceding section in respect of the keeping and use thereon of clocks and watches which are radioactive material:

Provided that this subsection does not apply to any premises on which clocks or watches are manufactured or repaired by processes involving the use of luminous material.

(6) The Minister may by order grant further exemptions from registration under the preceding section, by reference to such classes of premises and undertakings, and such descriptions of radioactive material, as may be specified in the order.

(7) Any exemption granted by an order under the last preceding subsection may be granted subject to such limitations or conditions as may be specified in the order.

**Registration
of mobile
radioactive
apparatus.**

3.—(1) As from the appointed day no person shall—

- (a) keep, or cause or permit to be kept, mobile radioactive apparatus of any description for the purpose of its being used in the provision by him of services to which this section applies, or
- (b) use, lend or let on hire, or cause or permit to be used, lent or let on hire, mobile radioactive apparatus of any description in the course of the provision by him of any such services,

unless he is registered under this section in respect of that apparatus or is exempted from registration under this section in respect of mobile radioactive apparatus of that description.

(2) This section applies to any services which consist of—

- (a) using mobile radioactive apparatus for testing, measuring or otherwise investigating any of the characteristics of substances or articles situated elsewhere than on premises occupied by the person providing the services, or
- (b) lending or letting on hire mobile radioactive apparatus for the purpose of its being so used.

(3) Any application for registration under this section shall be made to the Minister, specifying the mobile radioactive apparatus to which the application relates, and the nature of the services to which this section applies in the course of which the apparatus is to be used, lent or let on hire, and containing such other information as may be prescribed.

(4) Where an application is made to the Minister for registration under this section in respect of any apparatus, the Minister may register the applicant in respect of that apparatus, either

unconditionally or subject to such limitations or conditions as the Minister thinks fit, or may refuse the application.

(5) On registering a person under this section in respect of any mobile radioactive apparatus, the Minister shall furnish him with a certificate containing all material particulars of the registration.

4.—(1) The Authority are exempted from registration under the last preceding section in respect of mobile radioactive apparatus of every description. Exemptions from registration under s. 3.

(2) The Minister may by order grant further exemptions from registration under the last preceding section, by reference to such classes of persons, and such descriptions of mobile radioactive apparatus, as may be specified in the order.

(3) Any exemption granted by an order under the last preceding subsection may be granted subject to such limitations or conditions as may be specified in the order.

5.—(1) Where any person is for the time being registered under section one or section three of this Act, the Minister may at any time cancel the registration, or may vary it— Cancellation and variation of registration.

(a) where the registration has effect without limitations or conditions, by attaching limitations or conditions thereto;

(b) where the registration has effect subject to limitations or conditions, by revoking or varying any of those limitations or conditions or by attaching further limitations or conditions thereto.

(2) On cancelling or varying a registration by virtue of this section, the Minister shall give notice thereof to the person to whom the registration relates, and, if a copy of the certificate of registration was sent to a local authority in accordance with subsection (6) of section one of this Act, shall send a copy of the notice to that local authority.

6.—(1) Subject to the provisions of this section, as from the appointed day no person shall, except in accordance with an authorisation granted in that behalf under this subsection, dispose of any radioactive waste on or from any premises which are used for the purposes of an undertaking carried on by him, or cause or permit any radioactive waste to be so disposed of, if (in any such case) he knows or has reasonable grounds for believing it to be radioactive waste. Disposal of radioactive waste.

(2) Where any person keeps any mobile radioactive apparatus for the purpose of its being used in the provision by him of services to which section three of this Act applies, he shall not, on or after the appointed day, dispose of any radioactive waste arising from any such apparatus so kept by him, or cause or permit any such radioactive waste to be disposed of, except in

accordance with an authorisation granted in that behalf under this subsection.

(3) Where on or after the appointed day any person, in the course of the carrying on by him of an undertaking, receives any radioactive waste for the purpose of its being disposed of by him, he shall not, except in accordance with an authorisation granted in that behalf under this subsection, dispose of that waste, or cause or permit it to be disposed of, knowing or having reasonable grounds for believing it to be radioactive waste:

Provided that the disposal of any radioactive waste does not require an authorisation under this subsection, if it is waste which falls within the provisions of an authorisation granted under either of the preceding subsections, and it is disposed of in accordance with the authorisation so granted.

(4) Subsections (1) and (3) of this section shall not apply to the disposal of any radioactive waste arising from clocks or watches:

Provided that this subsection shall not affect the operation of subsection (1) of this section in relation to the disposal of any such radioactive waste on or from premises which, by virtue of the proviso to subsection (5) of section two of this Act, are excluded from the operation of the said subsection (5).

(5) Without prejudice to the last preceding subsection, the Minister may by order exclude particular descriptions of radioactive waste from any of the provisions of this section, either absolutely or subject to limitations or conditions; and accordingly such of those provisions as may be specified in an order under this subsection shall not apply to a disposal of radioactive waste if it is radioactive waste of a description so specified, and (where the exclusion is subject to limitations or conditions) the limitations or conditions specified in the order are complied with.

(6) In relation to any premises which—

(a) are situated on a site in respect of which a nuclear site licence is for the time being in force, or in respect of which, after the revocation or surrender of such a licence, the period of responsibility of the licensee has not come to an end, but

(b) have ceased to be used for the purposes of an undertaking carried on by the licensee,

subsection (1) of this section shall apply (subject to the provisions of subsections (4) and (5) of this section) as if the premises were used for the purposes of an undertaking carried on by the licensee.

7.—(1) Subject to the provisions of this section, as from the appointed day no person shall, except in accordance with an authorisation granted in that behalf under this section, accumulate (with a view to the subsequent disposal thereof) any radioactive waste on any premises which are used for the purposes of an undertaking carried on by him, or cause or permit any radioactive waste to be so accumulated, if (in any such case) he knows or has reasonable grounds for believing it to be radioactive waste.

(2) Where the disposal of any radioactive waste has been authorised under the last preceding section, and in accordance with that authorisation the waste is required or permitted to be accumulated with a view to the subsequent disposal thereof, no further authorisation under this section shall be required to enable the waste to be accumulated in accordance with the authorisation granted under the last preceding section.

(3) Subsection (1) of this section shall not apply to the accumulation of radioactive waste on—

- (a) any premises used for the purposes of their undertaking by the Authority, or
- (b) any premises situated on a site in respect of which a nuclear site licence is for the time being in force, or
- (c) any premises situated on a site in respect of which, after the revocation or surrender of a nuclear site licence, the period of responsibility of the licensee has not come to an end.

(4) The provisions of subsections (4) and (5) of the last preceding section shall apply for the purposes of this section, as if in those provisions any reference to subsection (1) or subsection (3) of that section were a reference to subsection (1) of this section, and any reference to disposal were a reference to accumulation.

(5) For the purposes of this section, where radioactive material is produced, kept or used on any premises, and any substance arising from the production, keeping or use of that material is accumulated in a part of the premises appropriated for the purpose, and is retained there for a period of not less than three months, that substance shall, unless the contrary is proved, be presumed—

- (a) to be radioactive waste, and
- (b) to be accumulated on the premises with a view to the subsequent disposal thereof.

8.—(1) The power to grant authorisations under subsection (1) of section six of this Act in respect of the disposal of radioactive waste on or from—

- (a) any premises used for the purposes of their undertaking by the Authority, or

Supplementary provisions as to authorisation of disposal and accumulation of radioactive waste.

- (b) any premises situated on a site in respect of which a nuclear site licence is for the time being in force, or
- (c) any premises situated on a site in respect of which, after the revocation or surrender of a nuclear site licence, the period of responsibility of the licensee has not come to an end,

shall be exercisable by the Minister and the Minister of Agriculture, Fisheries and Food; and the disposal of radioactive waste on or from any such premises shall not be treated as authorised thereunder unless it is so authorised by both those Ministers.

(2) Before granting an authorisation to which the preceding subsection applies, the Minister and the Minister of Agriculture, Fisheries and Food shall each consult with such local authorities, river boards, local fisheries committees, statutory water undertakers or other public or local authorities as appear to him to be proper to be consulted by him.

(3) Subject to the preceding provisions of this section, the power to grant authorisations under section six or section seven of this Act shall be exercisable by the Minister.

(4) Any authorisation under section six or section seven of this Act may be granted either in respect of radioactive waste generally or in respect of such one or more descriptions of radioactive waste as may be specified in the authorisation; and any such authorisation may be granted subject to such limitations or conditions as the Minister or Ministers granting the authorisation think fit.

(5) On granting any such authorisation, the Minister or Ministers concerned—

(a) shall furnish the person to whom the authorisation is granted with a certificate containing all material particulars of the authorisation; and

(b) shall (unless, for reasons of national security, it is in the opinion of the Minister or Ministers concerned necessary that knowledge of the authorisation should be restricted) send a copy of the certificate to each local authority in whose area, in accordance with the authorisation, radioactive waste is to be disposed of or accumulated, and, in the case of an authorisation to which subsection (1) of this section applies, to any other public or local authority consulted in relation thereto in accordance with subsection (2) of this section.

(6) Any such authorisation shall have effect as from such date as may be specified therein: and in fixing that date, in the case of an authorisation where copies of the certificate are required to be sent as mentioned in paragraph (b) of the last preceding subsection, the Minister or Ministers concerned—

- (a) shall have regard to the time at which those copies may be expected to be sent, and
- (b) shall fix a date appearing to him or them to be such as will allow an interval of not less than twenty-eight days after that time before the authorisation has effect,

unless in his or their opinion it is necessary that the coming into operation of the authorisation should be immediate or should otherwise be expedited.

(7) The Minister or Ministers by whom an authorisation has been granted under section six or section seven of this Act may at any time revoke the authorisation, or may vary it—

- (a) where the authorisation has effect without limitations or conditions, by attaching limitations or conditions thereto ;
- (b) where the authorisation has effect subject to limitations or conditions, by revoking or varying any of those limitations or conditions or by attaching further limitations or conditions thereto.

(8) On revoking or varying an authorisation granted under section six or section seven of this Act, the Minister or Ministers concerned shall give notice thereof to the person to whom the authorisation was granted, and, if a copy of the certificate of authorisation was sent to a public or local authority in accordance with paragraph (b) of subsection (5) of this section, shall send a copy of the notice to that authority.

9.—(1) For the purposes of the operation on or after the appointed day of any statutory provision to which this subsection applies, and for the purposes of the exercise or performance on or after that day of any power or duty conferred or imposed by, or for the enforcement of, any such statutory provision, no account shall be taken of any radioactivity possessed by any substance or article or by any part of any premises.

Provisions as to functions of public and local authorities.

(2) The preceding subsection applies—

- (a) to any statutory provision contained in, or for the time being having effect by virtue of, any of the enactments specified in the First Schedule to this Act, or any enactment for the time being in force whereby an enactment so specified is amended, extended or superseded ; and
- (b) to any statutory provision contained in, or for the time being having effect by virtue of, a local enactment whether passed or made before or after the passing of this Act (in whatever terms the provision is expressed) in so far as—

(i) the disposal or accumulation of waste or any description of waste, or of any substance which is a nuisance, or so as to be a nuisance, or of any substance which is, or so as to be, prejudicial to health, noxious, polluting or of any similar description, is thereby prohibited or restricted, or

(ii) a power or duty is thereby conferred or imposed on any local authority, river board, local fisheries committee, statutory water undertakers or other public or local authority, or on any officer of a public or local authority, to take any action (whether by way of legal proceedings or otherwise) for preventing, restricting or abating such disposals or accumulations as are mentioned in the preceding subparagraph.

(3) If, in considering an application for an authorisation under section six of this Act, it appears to the Minister (or, in a case where the power to grant the authorisation is exercisable by the Minister and the Minister of Agriculture, Fisheries and Food, it appears to either of those Ministers) that the disposal of radioactive waste to which the application relates is likely to involve the need for special precautions to be taken by a local authority, river board, local fisheries committee, statutory water undertakers or other public or local authority, the Minister or the Minister of Agriculture, Fisheries and Food, as the case may be, shall consult with that public or local authority before granting the authorisation.

(4) Where a public or local authority take any special precautions in respect of radioactive waste disposed of in accordance with an authorisation granted under section six of this Act, and those precautions are taken—

(a) in compliance with the conditions subject to which the authorisation was granted, or

(b) with the prior approval of the Minister (or, where the authorisation was granted by the Minister and the Minister of Agriculture, Fisheries and Food, with the prior approval of either of those Ministers) as being precautions which in the circumstances ought to be taken by that public or local authority,

the public or local authority shall have power to make such charges, in respect of the taking of those precautions, as may be agreed between that authority and the person to whom the authorisation was granted, or as, in default of such agreement, may be determined by the Minister, and to recover the charges so agreed or determined from that person.

(5) Where an authorisation granted under section six of this Act requires or permits radioactive waste to be removed to a

place provided by a local authority as a place for the deposit of refuse, it shall be the duty of that local authority to accept any radioactive waste removed to that place in accordance with the authorisation, and, if the authorisation contains any provision as to the manner in which the radioactive waste is to be dealt with after its removal to that place, to deal with it in the manner indicated in the authorisation.

(6) In this section "statutory provision" means a provision, whether of a general or a special nature, contained in, or in any document made or issued under, any Act, whether of a general or a special nature, "local enactment" means a local or private Act, or an order confirmed by Parliament or brought into operation in accordance with special parliamentary procedure, and any reference to disposal, in relation to a statutory provision, is a reference to discharging or depositing a substance or allowing a substance to escape or to enter a stream or other place, as may be mentioned in that provision.

10.—(1) If it appears to the Minister that adequate facilities are not available for the safe disposal or accumulation of radioactive waste, the Minister may provide such facilities, or may arrange for the provision thereof by such persons as the Minister may think fit.

Additional facilities and powers for disposal and accumulation of radioactive waste.

(2) Where, in the exercise of the power conferred by the preceding subsection, the Minister proposes to provide, or to arrange for the provision of, a place for the disposal or accumulation of radioactive waste, the Minister, before carrying out that proposal, shall consult with any local authority in whose area that place would be situated, and with such other public or local authorities (if any) as appear to him to be proper to be consulted by him.

(3) The Minister may make reasonable charges for the use of any facilities provided by him, or in accordance with arrangements made by him, under this section, or, in the case of facilities provided otherwise than by the Minister, may direct that reasonable charges for the use of the facilities may be made by the person providing them in accordance with any such arrangements.

(4) If there is radioactive waste on any premises, and the Minister is satisfied that—

- (a) the waste ought to be disposed of, but
- (b) by reason that the premises are unoccupied, or that the occupier is absent, or is insolvent, or for any other reason, it is unlikely that the waste will be lawfully disposed of unless the Minister exercises his powers under this subsection,

the Minister shall have power to dispose of that radioactive waste as the Minister may think fit, and to recover from the occupier

of the premises, or, if the premises are unoccupied, from the owner thereof, any expenses reasonably incurred by the Minister in disposing of it.

(5) The definition of "owner" in section three hundred and forty-three of the Public Health Act, 1936, and the provisions of section two hundred and ninety-four of that Act (which limits the liability of owners who are only agents or trustees), shall apply for the purposes of this section, with the substitution in the said section two hundred and ninety-four of references to the Minister for references to a council, and (in the application of this Act to London) shall so apply as if that Act extended to London.

Procedure in
connection
with registra-
tions and
authorisations.

11.—(1) Before the Minister—

- (a) refuses an application for registration under section one or section three of this Act, or attaches any limitations or conditions to such a registration, or
- (b) varies such a registration, otherwise than by revoking a limitation or condition subject to which it has effect, or
- (c) refuses an application for an authorisation under section six or section seven of this Act, or attaches any limitations or conditions to such an authorisation, or
- (d) varies such an authorisation, otherwise than by revoking a limitation or condition subject to which it has effect,

the Minister shall afford to the person directly concerned, and may afford to such local authorities or other persons as he may consider appropriate, an opportunity to appear before, and be heard by, a person appointed for the purpose by the Minister.

(2) In relation to authorisations under section six of this Act, in so far as the power to grant, revoke or vary any such authorisation is exercisable by the Minister and the Minister of Agriculture, Fisheries and Food, references in the preceding subsection to the Minister shall be construed as references to those Ministers.

(3) At all times while—

- (a) a person is registered in respect of any premises under section one of this Act, or
- (b) an authorisation granted in respect of any premises under subsection (1) of section six of this Act, or under section seven of this Act, is for the time being in force,

the person to whom the registration relates, or to whom the authorisation was granted, as the case may be, shall cause copies of the certificate of registration or authorisation issued to him under this Act to be kept posted on the premises, in such characters and in such positions as to be conveniently read by persons having duties on those premises which are or may be affected by the matters set out in the certificate.

(4) In this section "the person directly concerned", in relation to a registration under section one or section three of this Act, means the person applying for the registration, or the person to whom the registration relates, as the case may be, and, in relation to an authorisation under section six or section seven of this Act, means the person applying for the authorisation or the person to whom the authorisation was granted, as the case may be; and any reference to attaching limitations or conditions to a registration or authorisation is a reference to attaching limitations or conditions thereto either in effecting or granting the registration or authorisation, as the case may be, or in the exercise of any power to vary the registration or authorisation.

12.—(1) The Minister may appoint as inspectors, to assist him in the execution of this Act, such number of persons appearing to him to be qualified for the purpose as he may from time to time consider necessary or expedient, and may make to or in respect of any person so appointed such payments, by way of remuneration, allowances or otherwise, as the Minister may with the approval of the Treasury determine. Rights of entry and inspection.

(2) Any person being either an inspector appointed under the preceding subsection or a person authorised in that behalf by the Minister (in this section referred to as an "inspector") may, for the purposes of the execution of this Act,—

- (a) enter, at any reasonable time, upon any premises to which this subsection applies, with such equipment as the inspector may require;
- (b) carry out such tests and inspections on any such premises, and obtain and take away such samples of waste therefrom, as the inspector may consider necessary or expedient; and
- (c) require the occupier of any such premises, or any person with duties on or in connection with the premises, to provide the inspector with such information relating to the use of the premises, or to permit him to inspect such documents relating thereto, as the inspector may specify.

(3) The last preceding subsection applies—

- (a) to any premises in respect of which a person is for the time being registered under section one of this Act;
- (b) to any premises in respect of which a person is exempted from such registration by subsection (1) or subsection (2) of section two of this Act; and
- (c) to any premises in respect of which an authorisation granted under subsection (1) of section six of this Act, or under section seven of this Act, is for the time being in force:

Provided that, in relation to premises belonging to or used for the purposes of the Authority, the last preceding subsection shall have effect subject to the provisions of subsection (3) of section six of the Atomic Energy Authority Act, 1954 (which restricts entry to such premises where they have been declared to be prohibited places for the purposes of the Official Secrets Act, 1911).

(4) Where an inspector has reasonable grounds for believing that radioactive material has been or is being kept or used on any premises to which subsection (2) of this section does not apply, or that radioactive waste has been or is being disposed of or accumulated on or from any such premises, the inspector may exercise, in relation to those premises, any of the powers which are conferred by subsection (2) of this section in relation to premises to which the said subsection (2) applies:

Provided that this subsection shall have effect subject to the provisions of subsection (6) of this section.

(5) Subject to the next following subsection, any person authorised in that behalf by the Minister may at any reasonable time enter upon any premises for the purpose of disposing of radioactive waste in the exercise of the powers conferred by subsection (4) of section ten of this Act.

(6) No power shall be exercisable by virtue of subsection (4) or subsection (5) of this section in respect of any premises except—

- (a) with consent given by or on behalf of the occupier of the premises, or
- (b) under the authority of a warrant granted under the provisions of the Second Schedule to this Act, or
- (c) where entry is required in a case of emergency.

(7) For the purposes of the execution of this Act in relation to any such premises as are mentioned in subsection (1) of section eight of this Act,—

- (a) the Minister of Agriculture, Fisheries and Food may appoint as inspectors such number of persons appearing to him to be qualified for the purpose as he may from time to time consider necessary or expedient, and may make to or in respect of any person so appointed such payments, by way of remuneration, allowances or otherwise, as he may with the approval of the Treasury determine; and
- (b) subject to the provisions of subsection (3) of section six of the Atomic Energy Authority Act, 1954, any person being either an inspector so appointed or a person authorised in that behalf by the Minister of Agriculture,

Fisheries and Food may for those purposes exercise in relation to any such premises (but not in relation to any other premises) any of the powers conferred by paragraphs (a) to (c) of subsection (2) of this section, as if references in those paragraphs to an inspector included a reference to a person appointed or authorised as mentioned in this paragraph.

(8) The provisions of the Second Schedule to this Act shall have effect for the purposes of this section.

(9) In this section any reference to a case of emergency is a reference to a case where a person requiring entry to any premises in pursuance of this section has reasonable cause to believe that circumstances exist which are likely to endanger life or health, and that immediate entry to the premises is necessary to verify the existence of those circumstances or to ascertain their cause or to effect a remedy.

13.—(1) Any person who—

Offences.

- (a) contravenes any of the following provisions of this Act, that is to say, subsection (1) of section one, subsection (1) of section three, subsections (1), (2) and (3) of section six, and subsection (1) of section seven, or
- (b) being a person registered under section one or section three of this Act, or being (wholly or partly) exempted from registration thereunder, does not comply with a limitation or condition subject to which he is so registered or exempted, or
- (c) being a person to whom an authorisation under section six or section seven of this Act has been granted, does not comply with a limitation or condition subject to which that authorisation has effect,

shall be guilty of an offence under this subsection.

(2) A person guilty of an offence under the preceding subsection shall be liable—

- (a) on summary conviction, to a fine not exceeding one hundred pounds, or to imprisonment for a term not exceeding three months, or both ;
- (b) on conviction on indictment, to a fine, or to imprisonment for a term not exceeding five years, or both.

(3) If any person discloses any information relating to any relevant process or trade secret used in carrying on any particular undertaking which has been given to or obtained by him under this Act or in connection with the execution thereof, he shall, unless the disclosure is made—

- (a) with the consent of the person carrying on that undertaking, or

- (b) in accordance with any general or special directions given by the Minister, or
 - (c) in connection with the execution of this Act, or
 - (d) for the purposes of any legal proceedings arising out of this Act or of any report of any such proceedings,
- be guilty of an offence under this subsection.

In this subsection "relevant process" means any process applied for the purposes of, or in connection with, the production or use of radioactive material.

(4) A person guilty of an offence under the last preceding subsection shall be liable—

- (a) on summary conviction, to a fine not exceeding fifty pounds, or to imprisonment for a term not exceeding three months, or both ;
- (b) on conviction on indictment, to a fine, or to imprisonment for a term not exceeding two years, or both.

(5) Any person who—

- (a) contravenes the provisions of subsection (3) of section eleven of this Act, or
- (b) obstructs an inspector or other person in the exercise of any powers conferred by the last preceding section, or refuses or without reasonable excuse fails to provide any information or to permit any inspection reasonably required by an inspector or other person under that section,

shall be guilty of an offence, and shall be liable on summary conviction to a fine not exceeding fifty pounds, or to imprisonment for a term not exceeding three months, or both.

(6) Any person who without reasonable cause pulls down, injures or defaces any document posted in pursuance of subsection (3) of section eleven of this Act shall be guilty of an offence, and shall be liable on summary conviction to a fine not exceeding ten pounds.

(7) Proceedings in respect of any offence under this Act shall not be instituted in England or Wales except by the Minister or by or with the consent of the Director of Public Prosecutions.

(8) Where a body corporate is guilty of an offence under this section, and that offence is proved to have been committed with the consent or connivance of, or to be attributable to any neglect on the part of, any director, manager, secretary or other similar officer of the body corporate, or any person who was purporting to act in any such capacity, he, as well as the body corporate, shall be guilty of that offence, and shall be liable to be proceeded against and punished accordingly.

In this subsection "director", in relation to a body corporate established by or under any enactment for the purpose of carrying on under national ownership any industry or part of an industry or undertaking, being a body corporate whose affairs are managed by its members, means a member of that body corporate.

14.—(1) In relation to any hospital in Great Britain which is a hospital with respect to the management and control whereof any functions are exercised by a Hospital Management Committee or Board of Management, or is a teaching hospital within the meaning of the National Health Service Act, 1946,—

Application
of Act to
Crown.

(a) the Hospital Management Committee or Board of Management, or (in the case of a teaching hospital) the Board of Governors, shall, notwithstanding that their functions are exercised (directly or indirectly) on behalf of the Minister of Health or of the Secretary of State, be treated for the purposes of sections six and seven of this Act (but not for the purposes of section one thereof) as persons by whom the premises of the hospital are used for the purposes of an undertaking carried on by them, and

(b) no other person shall, for the purposes of any provisions of this Act, be treated as a person by whom the premises of the hospital are so used ;

and the provisions of this Act (other than section one thereof) shall have effect in relation to any such premises accordingly.

(2) Subject to the preceding subsection, the provisions of this Act shall not have effect with respect to any premises which are in the occupation of a government department, or, being premises in which there is an interest belonging to Her Majesty in right of the Crown and forming part of the Crown Estate, are occupied in right of that interest.

(3) Where, in the case of any such premises as are mentioned in the last preceding subsection,—

(a) arrangements are made whereby radioactive waste is not to be disposed of from those premises except with the approval of the Minister, and

(b) in pursuance of those arrangements the Minister proposes to approve, or approves, the removal of radioactive waste from those premises to a place provided by a local authority as a place for the deposit of refuse,

the provisions of subsections (3) to (5) of section nine of this Act shall apply as if the proposal to approve the removal of the waste were an application for an authorisation under section six of this Act to remove it, or (as the case may be) the approval were such an authorisation.

(4) Section three of this Act shall not apply to anything done by or on behalf of the Crown.

(5) Subsections (2) and (3) of this section shall apply in relation to any premises occupied by or for the purposes of a visiting force (that is to say, any such body, contingent or detachment of the forces of any country as is a visiting force for the purposes of any of the provisions of the Visiting Forces Act, 1952) as if those premises were in the occupation of the government department by arrangement with whom the premises are so occupied.

(6) Subject to the preceding provisions of this section, the provisions of this Act shall have effect in relation to any premises in which there is an interest belonging to Her Majesty in right of the Crown or of the Duchy of Lancaster, or to the Duchy of Cornwall, or belonging to a government department, or held in trust for Her Majesty for the purposes of a government department, as they apply in relation to premises in which there is no such interest.

**Regulations
and orders.**

15.—(1) The Minister may make regulations under this Act for any purpose for which regulations are authorised or required to be made under this Act.

(2) For the purpose of facilitating the exercise of any power under this Act to effect registrations, or grant authorisations, subject to limitations or conditions, the Minister may make regulations setting out general limitations or conditions applicable to such classes of cases as may be specified in the regulations; and any limitations or conditions so specified shall, for the purposes of this Act, be deemed to be attached to any registration or authorisation falling within the class of cases to which those limitations or conditions are expressed to be applicable, subject to such exceptions or modifications (if any) as may be specified in any such registration or authorisation.

(3) Any power conferred by this Act to make an order shall include power to vary or revoke the order by a subsequent order.

(4) Any power conferred by this Act to make regulations or orders shall be exercisable by statutory instrument.

(5) Any statutory instrument containing regulations or an order made under this Act shall be subject to annulment in pursuance of a resolution of either House of Parliament.

**Financial
provisions.**

16.—(1) There shall be paid out of moneys provided by Parliament—

- (a) any expenses incurred by the Minister or the Minister of Agriculture, Fisheries and Food in consequence of the passing of this Act;

- (b) any increase attributable to the provisions of this Act in the sums payable out of moneys so provided under any other enactment.

(2) Any receipts of the Minister under this Act shall be paid into the Exchequer.

17.—(1) Subject to the next following subsection, subsection (4) of section five of the Atomic Energy Authority Act, 1954 (which makes temporary provision as to the discharge of waste on or from premises occupied by the Authority), and subsection (5) of section one of the Nuclear Installations (Licensing and Insurance) Act, 1959 (which extends the said subsection (4) to sites in respect of which nuclear site licenses have been granted), are hereby repealed as from the appointed day. Repeals and transitional provisions.

(2) Any authorisation granted under the enactments mentioned in the preceding subsection which is in force immediately before the appointed day shall continue in force on and after that day (notwithstanding the repeal of those enactments, and notwithstanding the expiry of the period for which, apart from this Act, those enactments would have had effect) but shall have effect on and after that day as if it were an authorisation granted under subsection (1) of section six of this Act, and may be revoked or varied accordingly.

(3) In subsection (6) of section one of the Nuclear Installations (Licensing and Insurance) Act, 1959 (which requires copies of certain conditions and requirements to be kept posted on the premises), paragraph (b) (which relates to conditions or requirements attached to an authorisation granted under the enactments repealed by subsection (1) of this section) is hereby repealed as from the appointed day.

18.—(1) In this Act "radioactive material" means anything which, not being waste, is either a substance to which this subsection applies or an article made wholly or partly from, or incorporating, such a substance. Meaning of "radioactive material"; "radioactive waste" and "mobile radioactive apparatus".

(2) The preceding subsection applies to any substance falling within either or both of the following descriptions, that is to say,—

- (a) a substance containing an element specified in the first column of the Third Schedule to this Act, in such a proportion that the number of microcuries of that element contained in the substance, divided by the number of grammes which the substance weighs, is a number greater than that specified in relation to that element in the appropriate column of that Schedule;
- (b) a substance possessing radioactivity which is wholly or partly attributable to a process of nuclear fission or

other process of subjecting a substance to bombardment by neutrons or to ionising radiations, not being a process occurring in the course of nature, or in consequence of the disposal of radioactive waste, or by way of contamination in the course of the application of a process to some other substance.

(3) In paragraph (a) of the last preceding subsection "the appropriate column"—

- (a) in relation to a solid substance, means the second column;
- (b) in relation to a liquid substance, means the third column; and
- (c) in relation to a substance which is a gas or vapour, means the fourth column.

(4) In this Act "radioactive waste" means waste which consists wholly or partly of—

- (a) a substance or article which, if it were not waste, would be radioactive material, or
- (b) a substance or article which has been contaminated in the course of the production, keeping or use of radioactive material, or by contact with or proximity to other waste falling within the preceding paragraph or this paragraph.

(5) In this Act "mobile radioactive apparatus" means any apparatus, equipment or appliance which is radioactive material and is constructed or adapted for being transported from place to place.

(6) The Minister may by order vary the provisions of the Third Schedule to this Act, either by adding further entries to any column of that Schedule or by altering or deleting any entry for the time being contained in any column thereof; and, in relation to any time after those provisions have been so varied, any reference in subsection (2) of this section to that Schedule shall be construed as a reference to that Schedule as it has effect for the time being.

**General
interpretation
provisions.**

19.—(1) In this Act, except in so far as the context otherwise requires, the following expressions have the meanings hereby assigned to them respectively, that is to say:—

- "the appointed day" means such day as Her Majesty may by Order in Council appoint;
- "article" includes a part of an article;
- "the Authority" means the United Kingdom Atomic Energy Authority;

“disposal”, in relation to waste, includes the removal, deposit or destruction thereof, the discharge thereof, whether into water or into the air or into a sewer or drain or otherwise, or the burial thereof, whether underground or otherwise, and “dispose of” shall be construed accordingly;

“local authority” (except where the reference is to a public or local authority) means the council of a county, county borough, metropolitan borough or county district, or the Common Council of the City of London;

“the Minister” means the Minister of Housing and Local Government;

“nuclear site licence”, “licensee” and “period of responsibility” have the same meanings as in the Nuclear Installations (Licensing and Insurance) Act, 1959;

“premises” includes any land, whether covered by buildings or not, including any place underground and any land covered by water;

“prescribed” means prescribed by regulations under this Act;

“statutory water undertakers” has the same meaning as in the provisions of the Water Act, 1945, other than Part II of that Act;

“substance” means any natural or artificial substance, whether in solid or liquid form or in the form of a gas or vapour;

“undertaking” includes any trade, business or profession, and, in relation to a public or local authority, includes any of the powers or duties of that authority, and, in relation to any other body of persons, whether corporate or unincorporate, includes any of the activities of that body;

“waste” includes any substance which constitutes scrap material or an effluent or other unwanted surplus substance arising from the application of any process, and also includes any substance or article which requires to be disposed of as being broken, worn out, contaminated or otherwise spoilt.

(2) In determining, for the purposes of this Act, whether any radioactive material is kept or used on any premises, no account shall be taken of any radioactive material kept or used in or on any railway vehicle, road vehicle, vessel or aircraft if either—

(a) the vehicle, vessel or aircraft is on those premises in the course of a journey, or

(b) in the case of a vessel which is on those premises otherwise than in the course of a journey, the material is used in propelling the vessel or is kept in or on the vessel for use in propelling it.

(3) Any substance or article which, in the course of the carrying on of any undertaking, is discharged, discarded or otherwise dealt with as if it were waste shall, for the purposes of this Act, be presumed to be waste unless the contrary is proved.

(4) Any reference in this Act to the contamination of a substance or article is a reference to its being so affected by either or both of the following, that is to say,—

(a) absorption, admixture or adhesion of radioactive material or radioactive waste, and

(b) the emission of neutrons or ionising radiations,

as to become radioactive or to possess increased radioactivity.

(5) Subject to the provisions of sections nine and seventeen of this Act, and of section thirty-three of the Interpretation Act, 1889 (which relates to offences under two or more laws), nothing in this Act shall be construed as—

(a) conferring a right of action in any civil proceedings (other than proceedings for the recovery of a fine) in respect of any contravention of this Act, or

(b) affecting any restriction imposed by or under any other enactment, whether contained in a public general Act or in a local or private Act, or

(c) derogating from any right of action or other remedy (whether civil or criminal) in proceedings instituted otherwise than under this Act.

(6) References in this Act to any enactment shall, except where the context otherwise requires, be construed as references to that enactment as amended by or under any other enactment.

Application
to Scotland.

20. This Act shall in its application to Scotland have effect subject to the following modifications:—

(a) for any reference to the Minister there shall be substituted a reference to the Secretary of State ;

(b) any reference to the Minister of Agriculture, Fisheries and Food shall be omitted, and anything required to be done in England by both the Minister and that Minister shall be done in Scotland by the Secretary of State ;

(c) “local authority” (except where the reference is to a public or local authority) means a county or town

council, and for references to river boards, local fisheries committees and statutory water undertakers there shall be substituted respectively references to river purification authorities within the meaning of the Rivers (Prevention of Pollution) (Scotland) Act, 1951, fishery district boards within the meaning of the Water (Scotland) Act, 1946, and local water authorities within the meaning of that Act ;

- (d) for any reference to a justice of the peace there shall be substituted a reference to the sheriff ;
- (e) in subsection (5) of section ten for references to section three hundred and forty-three of the Public Health Act, 1936, to section two hundred and ninety-four of that Act, to the Minister and to a council there shall be substituted respectively references to section three of the Public Health (Scotland) Act, 1897, to section fourteen of the Housing (Repairs and Rents) (Scotland) Act, 1954, to the Secretary of State and to a local authority.

21.—(1) This Act shall extend to Northern Ireland subject to the provisions of this section. Northern Ireland.

(2) In its application to Northern Ireland, this Act shall have effect subject to the following modifications, that is to say—

- (a) except in section sixteen of this Act, any reference to the Minister shall be construed as a reference to the Ministry of Health and Local Government for Northern Ireland, any reference to the Minister of Agriculture, Fisheries and Food shall be construed as a reference to the Ministry of Commerce for Northern Ireland, and any reference to the Treasury shall be construed as a reference to the Ministry of Finance for Northern Ireland ;
- (b) any provision of this Act requiring regulations or orders to be made by statutory instrument shall be construed as a provision that those regulations or orders shall be statutory rules within the meaning of the Statutory Rules Act (Northern Ireland) 1958 ;
- (c) any provision of this Act whereby a statutory instrument containing regulations or an order is to be subject to annulment in pursuance of a resolution of either House of Parliament shall be construed as a provision that those regulations or that order shall be subject to negative resolution within the meaning of subsection (6) of section forty-one of the Interpretation Act, (Northern Ireland), 1954 ;
- (d) any reference to an enactment of the Parliament of the United Kingdom shall be construed as a reference to that enactment as it applies in Northern Ireland ;

- (e) any reference to a government department shall be construed as including a reference to a department of the Government of Northern Ireland ;
- (f) "local authority" (except where the reference is to a public or local authority) means the council of a county or county borough or an urban or rural district ;
- (g) any reference to a river board or a local fisheries committee shall be construed as a reference to a board of conservators for a fishery district constituted under the Fisheries Acts (Northern Ireland), 1842 to 1954 ;
- (h) any reference to statutory water undertakers shall be construed as a reference to a statutory water undertaking within the meaning of the Water Supplies and Sewerage Act (Northern Ireland), 1945 ;
- (i) in section nine of this Act "enactment" includes an enactment of the Parliament of Northern Ireland, "statutory provision" (notwithstanding anything in subsection (6) thereof) shall have the meaning assigned to it by paragraph (f) of section one of the Interpretation Act (Northern Ireland) 1954, and in the definition of "local enactment" therein the reference to a local or private Act includes a reference to a local or private Act of the Parliament of Northern Ireland, and the reference to an order confirmed by Parliament includes a reference to an order confirmed by that Parliament ;
- (j) in subsection (5) of section ten of this Act the references to London shall be construed as references to Northern Ireland.

(3) Proceedings in respect of any offence under this Act shall not be instituted in Northern Ireland except by the Minister of Health and Local Government for Northern Ireland or by or with the consent of the Attorney General for Northern Ireland.

(4) Nothing in this Act shall authorise any department of the Government of Northern Ireland to incur any expenses attributable to the provisions of this Act until provision has been made by the Parliament of Northern Ireland for those expenses to be defrayed out of moneys provided by that Parliament.

(5) For the purposes of section six of the Government of Ireland Act, 1920, this Act shall be deemed to have been passed before the day which is the appointed day within the meaning of that section.

Short title.

22. This Act may be cited as the Radioactive Substances Act, 1960.

SCHEDULES

FIRST SCHEDULE

Section 9

ENACTMENTS, OTHER THAN LOCAL ENACTMENTS, TO WHICH
S. 9 (1) APPLIES

PART I

England and Wales

1. Section two of the Sea Fisheries Regulation Act, 1888.
2. Sections eight and fifty-nine of the Salmon and Freshwater Fisheries Act, 1923.
3. The following provisions of the Public Health Act, 1936, that is to say, sections twenty-seven, thirty-nine, forty-eight, seventy-nine, eighty-one, eighty-two and ninety-two, subsection (2) of section one hundred and eight, and sections one hundred and forty-one, two hundred and fifty-nine and two hundred and sixty-one.
4. The following provisions of the Public Health (London) Act, 1936, that is to say, sections thirty-four, forty, forty-eight, forty-nine, eighty-two to eighty-four, ninety-three, one hundred and two, one hundred and twenty-eight and one hundred and thirty-seven.
5. The Public Health (Drainage of Trade Premises) Act, 1937.
6. Sections seventeen, eighteen and twenty-one of the Water Act, 1945.
7. Sections two, five and seven of the Rivers (Prevention of Pollution) Act, 1951.
8. Sections ten and sixteen of the Clean Air Act, 1956.

PART II

Scotland

9. Section thirteen of the Salmon Fisheries (Scotland) Act, 1862.
10. Section seven of the Rivers Pollution Prevention Act, 1876.
11. The following provisions of the Burgh Police (Scotland) Act, 1892, that is to say, sections one hundred and nine, one hundred and twenty-five, one hundred and twenty-seven, two hundred and twenty-two, two hundred and twenty-three and two hundred and thirty-three.
12. Sections eight and seventeen of the Sea Fisheries Regulation (Scotland) Act, 1895.
13. The following provisions of the Public Health (Scotland) Act, 1897, that is to say, sections sixteen, seventeen, thirty-two, forty-one, forty-two, one hundred and sixteen and one hundred and twenty.

1st SCH.

- 14. Sections sixty, sixty-one and sixty-four of the Water (Scotland) Act, 1946.
- 15. Sections twenty-two, twenty-five and twenty-eight of the Rivers (Prevention of Pollution) (Scotland) Act, 1951.
- 16. Sections ten and sixteen of the Clean Air Act, 1956.

PART III*Northern Ireland*

- 17. Sections eighty and ninety-one of the Fisheries (Ireland) Act, 1842.
- 18. Section seventeen of the Waterworks Clauses Act, 1863.
- 19. Section ten of the Fisheries (Ireland) Act, 1869.
- 20. Sections two to five and section seven of the Rivers Pollution Prevention Act, 1876.
- 21. The following provisions of the Public Health (Ireland) Act, 1878, that is to say, sections fifty, fifty-one, fifty-four, fifty-eight, fifty-nine, one hundred and seven, one hundred and twenty-nine and one hundred and thirty.
- 22. Sections seventeen and twenty-six of the Public Health Acts Amendment Act, 1890.
- 23. Subsection (2) of section five of the Public Health (Ireland) Act, 1896.
- 24. Sections thirty-five, forty-six, forty-nine and fifty-one of the Public Health Acts Amendment Act, 1907.
- 25. Section eleven of the Water Supplies and Sewerage Act (Northern Ireland), 1945.
- 26. Any enactment which may be passed by the Parliament of Northern Ireland for purposes similar to those of section ten or section sixteen of the Clean Air Act, 1956.

Section 12.**SECOND SCHEDULE****EXERCISE OF RIGHTS OF ENTRY AND INSPECTION**

- 1. A person entering upon any premises in the exercise of any power conferred by this Act shall, if so required, produce written evidence of his authority before entering thereon.
- 2. Where it is shown to the satisfaction of a justice of the peace, on sworn information in writing, that admission to premises specified in the information is reasonably required by a person for the purpose of exercising a power conferred by this Act in respect thereof, the justice, subject to the next following paragraph, may by warrant under his hand authorise that person to enter upon the premises.
- 3. A justice of the peace shall not grant a warrant under the last preceding paragraph in respect of any premises unless he is satisfied—
 - (a) that admission to the premises, for the purpose of exercising the power in question, was sought after not less than seven days' notice of the intended entry had been given to the occupier ; or

- (b) that admission to the premises for that purpose was sought in a case of emergency and was refused by or on behalf of the occupier ; or
- (c) that the premises are unoccupied ; or
- (d) that an application for admission to the premises would defeat the object of the entry :

2ND SCH.

Provided that, in relation to premises to which subsection (2) of section twelve of this Act applies, the reference in sub-paragraph (a) of this paragraph to seven days shall be construed as a reference to twenty-four hours.

4. Every warrant granted under this Schedule shall continue in force until the purpose for which the entry is required has been satisfied.

5. Any person who, in the exercise of a power conferred by this Act, enters any premises which are unoccupied, or premises of which the occupier is temporarily absent, shall leave the premises as effectually secured against trespassers as he found them.

6. Before a person carries out any test on any premises, in the exercise of any power conferred by this Act, he shall consult with such persons having duties on the premises as may appear to him appropriate in order to secure that the carrying out of the test does not create any danger.

7. Any power of entry conferred by this Act shall, if exercised under the authority of a warrant granted under this Schedule, or in a case of emergency, but not in any other case, include power to enter, if need be, by force.

8. Any power of entry, or of carrying out tests or inspections, or of obtaining or taking away samples, conferred on any person by this Act may be exercised by him either alone or together with any other persons.

9. In this Schedule any reference to a case of emergency shall be construed in accordance with subsection (9) of section twelve of this Act.

THIRD SCHEDULE

Section 18.

SPECIFIED ELEMENTS

Element	Microcuries per gramme		
	Solid	Liquid	Gas or vapour
1. Actinium	1×10^{-5}	2×10^{-6}	7×10^{-11}
2. Lead	2×10^{-5}	1×10^{-7}	3×10^{-9}
3. Polonium	1×10^{-5}	7×10^{-7}	6×10^{-9}
4. Protoactinium	1×10^{-5}	9×10^{-7}	3×10^{-11}
5. Radium	1×10^{-5}	1×10^{-6}	1×10^{-9}
6. Radon	—	—	1×10^{-6}
7. Thorium	7×10^{-5}	1×10^{-6}	6×10^{-10}
8. Uranium	3×10^{-4}	2×10^{-5}	2×10^{-9}

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Fisheries (Ireland) Act, 1842... ..	5 & 6 Vict. c. 106.
Waterworks Clauses Act, 1847	10 & 11 Vict. c. 17.
Salmon Fisheries (Scotland) Act, 1862	25 & 26 Vict. c. 97.
Waterworks Clauses Act, 1863	26 & 27 Vict. c. 93.
Fisheries (Ireland) Act, 1869... ..	32 & 33 Vict. c. 92.
Rivers Pollution Prevention Act, 1876	39 & 40 Vict. c. 75.
Public Health (Ireland) Act, 1878	41 & 42 Vict. c. 52.
Sea Fisheries Regulation Act, 1888	51 & 52 Vict. c. 54.
Interpretation Act, 1889	52 & 53 Vict. c. 63.
Public Health Acts Amendment Act, 1890	53 & 54 Vict. c. 59.
Burgh Police (Scotland) Act, 1892	55 & 56 Vict. c. 55.
Sea Fisheries Regulation (Scotland) Act, 1895	58 & 59 Vict. c. 42.
Public Health (Ireland) Act, 1896	59 & 60 Vict. c. 54.
Public Health (Scotland) Act, 1897	60 & 61 Vict. c. 38.
Public Health Acts Amendment Act, 1907	7 Edw. 7. c. 53.
Official Secrets Act, 1911	1 & 2 Geo. 5. c. 28.
Government of Ireland Act, 1920	10 & 11 Geo. 5. c. 67.
Salmon and Freshwater Fisheries Act, 1923... ..	13 & 14 Geo. 5. c. 16.
Public Health Act, 1936	26 Geo. 5. & 1 Edw. 8. c. 49.
Public Health (London) Act, 1936	26 Geo. 5. & 1 Edw. 8. c. 50.
Public Health (Drainage of Trade Premises) Act, 1937	1 Edw. 8. & 1 Geo. 6. c. 40.
Water Act, 1945	8 & 9 Geo. 6. c. 42.
Water (Scotland) Act, 1946	9 & 10 Geo. 6. c. 42.
National Health Service Act, 1946	9 & 10 Geo. 6. c. 81.
Rivers (Prevention of Pollution) Act, 1951	14 & 15 Geo. 6. c. 64.
Rivers (Prevention of Pollution) (Scotland) Act, 1951	14 & 15 Geo. 6. c. 66.
Visiting Forces Act, 1952	15 & 16 Geo. 6. & 1 Eliz. 2. c. 67.
Atomic Energy Authority Act, 1954	2 & 3 Eliz. 2. c. 32.
Housing (Repairs and Rents) (Scotland) Act, 1954	2 & 3 Eliz. 2. c. 50.
Clean Air Act, 1956	4 & 5 Eliz. 2. c. 52.
Nuclear Installations (Licensing and Insur- ance) Act, 1959	7 & 8 Eliz. 2. c. 46.

CHAPTER 35

An Act to enable effect to be given to an international agreement for the establishment and operation of an International Development Association, and for purposes connected therewith. [2nd June, 1960]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—